

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

15. 9:00 AM CASE NUMBER: L25-13119

CASE NAME: WELLS FARGO BANK, N.A. VS. ELIZABETH APARICIO, AN INDIVIDUAL

***HEARING ON MOTION FOR DISCOVERY FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSION AS ADMITTED**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion), along with a Declaration, on 4/3/26.

Plaintiff attached the particular facts at issue, numbered One through Nine and entitled, "Set One," to their Declaration, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer, which is the same address where Defendant was personally served with process.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order and serve Defendant with a copy of the filed Order.

**16. 9:00 AM CASE NUMBER: L25-14274
CASE NAME: CHRISTOPHER BOSCIA VS. ROBERT SERAFIN
HEARING ON DEMURRER TO: CHRISTOPHER BOSCIA'S DEMURRER TO CROSS COMPLAINT FILED ON
04/08/2026
FILED BY:**

TENTATIVE RULING:

Any party contesting this tentative ruling must email Dept14@contracosta.courts.ca.gov and opposing parties by 4:00 p.m. on the court day prior to the hearing (7/13/26). If oral argument is requested, the requesting party shall specify the issues to be argued. If properly contested, the hearing will take place on 7/14/26 at 2:00 p.m.

Cross-Defendant ("CD") filed a Demurrer to the Cross Complaint of Cross-Complainant ("CC"), along with a Declaration. CC filed a Response as well as a Declaration. All of the pleadings appear to have been served electronically. Though CC is self-represented and does not appear to have provided consent to email service, he did file a Response, so this court finds that parties have been properly served and notified.

Background

CD filed an initial Complaint in this matter, as Plaintiff, on 12/12/25, alleging breach of contract in that CC, as Defendant, on 8/20/22, failed to pay approximately \$6,600, plus interest, based on an agreement between the two parties for legal services.

The Cross Complaint, filed on 2/25/26, alleged that CC retained CD as counsel on 12/3/21, for a DVRO matter. There was a written fee agreement for legal counsel which detailed the scope of the representation, hourly rates, and terms of payment. The duration of the representation was for approximately 8 months, ending in August, 2022. During this period, CC paid a total of \$33,253.87 for the professional legal service as well as for the services of a third-party forensic expert. CC did not prevail at the hearing for the DVRO, and a court issued an order against him.

At some point after this restraining order was issued, CC obtained a different attorney who successfully represented him in a hearing to extend the original restraining order. CC paid this attorney approximately \$3,000.